

² HP has apparently abandoned its reliance on section 15.2 of the Pool Agreement, as its Reply does not address the arguments in Counterclaim Defendants' opposition explaining why this provision is irrelevant to FRAND.

³ Notably, HP does not dispute that it will be seeking a global FRAND rate below the preapproved Reduced Rates allowed by the Pool Agreement, which would require the approval of non-party patent owners.